

THICKER THAN MUD.

Issue 02: the work behind the mud. Pay, schedules, safety, bodies, and what a contract fixes.

HOW THIS ISSUE WORKS.

Issue 01 was the map: your rights, the steps, the boss's playbook. This issue sits inside the problems. Each page takes one working condition, names how it actually works at a kava bar, and ends with what to write down and what to demand.

IN THIS ISSUE:

Wage theft, in two parts: the three ways, and the paper trail
Scheduling
Closing alone
Bodies
Surveillance and discipline
Where the money goes
The general union, explained

IF YOU ONLY HAVE FIVE MINUTES: read page 4. Write down one violation, with a date, before your next shift.

WAGE THEFT, PART ONE.

THE THREE WAYS IT HAPPENS HERE.

1. The tip pool. Tips belong to the workers who earned them. A manager or owner dipping into the pool, skimming the jar, or taking a cut for “ the house” is stealing. So is using tips to cover a register shortfall or a walkout.

2. Off the clock. Brewing before open, straining, prepping, cleaning after close, counting the drawer, answering the group chat about tomorrow’s shift. If the bar needs it done, it is work, and work is paid.

3. The 1099. Paid like a contractor, scheduled and trained like an employee. If the bar sets your hours, your uniform, your recipes and your discipline, you are probably an employee, whatever the paperwork says. Misclassification is how bars dodge minimum wage, overtime and workers’ comp.

None of this is a mistake. It is a business model, and it only works while nobody writes it down.

WAGE THEFT, PART TWO.

THE PAPER TRAIL.

A complaint without dates is a feeling. A complaint with dates is a case. Keep a private log, off the bar's Wi-Fi, on your own phone. For every violation, write: date, start and end time, who was there, what happened, and what you were owed.

Keep the proof that already exists: schedules, group chat screenshots, tip pool sheets, pay stubs, photos of the jar. Save copies outside the bar, in case you lose access to the group chat overnight.

Where to take it. US DOL Wage and Hour takes complaints about stolen tips, off-clock work and unpaid wages: dol.gov/agencies/whd, 1-866-487-9243. You can also take it to your committee first, and use the total as leverage in bargaining. A boss who owes five workers a thousand dollars each is a boss with a reason to sign.

If tips do not get you to $15 every hour, the bar owes the gap.

SCHEDULING.

THE SHIFT IS THE WEAPON.

A schedule posted the night before is not a schedule. It is a leash. Last-minute changes, split shifts with an unpaid gap in the middle, clopens that leave you five hours between close and open, hours cut the week you speak up: all of it keeps you too tired and too broke to organize, and too grateful for the shifts you do get.

Florida has no predictable scheduling law for private workplaces, so a schedule is only as fair as the contract behind it. That is the point. A contract can say what the law will not.

WHAT A CONTRACT CAN SAY

■ Schedules posted 14 days out, and paid if changed inside 72 hours.
■ No clopens. At least 10 hours between shifts.
■ Hours by seniority and availability, not by loyalty to the boss.
■ No punishment shifts. Hours are not discipline.

CLOSING ALONE.

THE 2 A.M. PROBLEM.

Closing alone is the most dangerous part of the job, and the easiest to fix. One worker, cash in the drawer, impaired or hostile customers, a dark parking lot, and nobody to call if something goes wrong. Bars save money by staffing the close with one person. Workers pay for it with their safety.

What to demand: a two-person close, every night, no exceptions. A locked door at close, with last call actually enforced. A panic button or a phone that works. A ride or a walkout buddy after dark. And a rule that no one cleans alone after the last customer leaves.

On customers: you have the right to refuse service to someone who is harassing you, and the right to a manager who backs you up instead of apologizing to the customer. If the bar will not protect you from a regular, the regular is not the problem. The bar is.

Write down every incident: who, when, what was said, who saw it. A pattern on paper is harder to dismiss than a story told once.

BODIES.

THE JOB WEARS YOU OUT ON PURPOSE.

Kava work looks calm. It is not. Hours on your feet on hard floors, straining till your forearms burn, lifting cases of shells and water, breathing in a room full of people, smiling through it. Then no real break, no meal, no chair, and no sick pay when your body finally says no.

Breaks are not a favor. A real break means off the floor, off the clock for the customer, and long enough to eat. A five-minute breather by the sink while the line grows is not a break.

Sick pay is a safety issue. A worker with no paid sick days comes in sick, serves a room full of people, and gets sicker. A contract can fix that

with paid sick days, a real break rule, a stool behind the bar, and a rotation so no one strains all night, every night.

And the insurance gap: most kava workers have no coverage through the bar. That is why a union fights for a health fund, or at least for hours that do not vanish when you need care.

SURVEILLANCE AND DISCIPLINE.

WATCHED, WRITTEN UP, FIRED.

Cameras over the bar, the tip jar, the group chat. A write-up for a tone, a warning for a shift you never agreed to, a firing with no reason given. Florida is an at-will state, which means a boss can fire you for almost any reason, or for no reason, as long as it is not an illegal one, like firing you for union activity.

That is why “just cause” matters more than almost any other contract language. Just cause means the boss has to prove a real reason, follow a fair process, and let you grieve a firing with your union. Without it, every other win in the contract can be taken back one firing at a time.

What to watch for: discipline that lands only on the workers who talk union. Rules enforced for one person and ignored for another. A paper trail that starts the week you sign a card. Write it down, with dates, and take it to your organizer. That pattern is the case.

Never sign a write-up you disagree with. Write “signing only to acknowledge receipt” next to your name, and keep a copy.

WHERE THE MONEY GOES.

BAR MATH, IN PLAIN TERMS.

A kava bar sells a cheap product at a good margin, in a room full of regulars who come back every night. The money is there. The question is who it goes to. When a boss says there is no money for raises, ask to see the numbers. A union can ask for them in bargaining, and a boss who refuses to show them is telling you something.

A fair pattern contract is not a wish list. It is a floor every bar in town can meet: $15 an hour as a floor, not a ceiling. Tips untouched by

management. Schedules posted 14 days out. A two-person close. Paid sick days. Just cause. A real break.

IF ONE BAR CAN DO IT, EVERY BAR CAN DO IT. THAT IS WHAT A PATTERN IS FOR.

THE GENERAL UNION, EXPLAINED.

ONE BAR AT A TIME, ALL BARS TOGETHER.

US labor law is built bar by bar. You cannot force separate owners to bargain together in one election. A multi-employer unit needs the owners to agree to it, and they will not agree until you have leverage somewhere else.

So a general kava union works like this: organize one anchor bar, a bigger bar that clears the NLRB's $500k gross line, and win a strong first contract there. Take that contract as a pattern to the next bar, and the next. Small bars that fall below $500k do not get NLRB protection on their own, but a signed pattern agreement is a contract, and a contract can be

enforced even without the Board. That is how small bars get covered: not by lowering the line, but by signing the pattern.

The union itself is the shared part: one committee across bars, one hardship fund, one legal intake, one set of demands, and regulars who back workers at every bar, not just their own. Start with EWOC, workerorganizing.org, and ask for an organizer. You do not have to build this alone.

WHO'S GOT YOUR BACK.

EWOC · Free training and a volunteer organizer matched to your bar. Start here.

workerorganizing.org

Workers United · The SEIU union behind Starbucks Workers United. Organizes cafés and bars.

workersunited.org

UNITE HERE · The hospitality union: food service, hotels, bars.

unitehere.org

Labor Notes · Organizer trainings, guides and a big yearly conference.

labornotes.org

NLRB · File a charge or an election petition.

nlrb.gov · 1-844-762-6572

US DOL Wage & Hour · Stolen tips, off-clock work, unpaid wages.

dol.gov/agencies/whd · 1-866-487-9243

WRITE IT DOWN.

Keep a private, shared log of every violation. One line a day is enough.

DATE	TIME	WHO	WHAT HAPPENED

Our organizer: _____

Next meeting: _____

EWOC · workerorganizing.org · NLRB 1-844-762-6572 · DOL Wage & Hour 1-866-487-9243

MORE ROOM TO LOG IT.

One line a day is enough. Patterns win cases.

DATE	TIME	WHO	WHAT HAPPENED

NOTES.

COPY IT.
FOLD IT.
PASS IT ON.

Solidarity is thicker than mud.



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github.com/Thicker-Than-Mud/thicker-than-mud

Not legal advice. Laws change; check with an organizer. Facts as of Spring 2027.